

quam hominis, as in 37 H. 6. 16. If a man has *interesse termini pro termino annorum* to begin at Michaelmas, he cannot expressly surrender this interest; but if he takes a new lease for years, this acceptance is a (a) surrender in law of the first lease. So if a prior with the consent of his convent makes a lease for years rendering rent; if the prior by deed expressly releases the rent and dies, the successor shall recover the arrearages: but if the prior had ousted the lessee and died, this discharge in law should discharge the rent which incurred during the ouster against the successor, as it appears in 34 H. 6. 21.

And this construction and no other stands with the words and intention of the said letters patent. But if (b) two constructions may be made of the King's grant, then the rule is, when it may receive two constructions, and by force of one construction the grant may according to the rule of law be adjudged good, and by another it shall by law be adjudged void: then for the King's honour, and for the benefit of the subject, such construction shall be made, that the King's charter shall take effect, for it was not the King's intent to make a void grant; and therewith agrees *Sir (c) J. Molins's case* in the Sixth Part of my Reports. ¶ 2. It was resolved, that the (d) delivery made by the wardens of the said letters patent in Chancery to be cancelled, &c. (which was part of the consideration) by their hands without writing, was sufficient, and as much as they ought to do; and it belongs to the Lord Chancellor or his officers to have cancelled them, and every one ought to do what belongs to him to do. ¶ 3. It was resolved, (e) that it was not necessary to find the payment of the said twenty pounds, which was one of the (f) considerations of the lease; for that is but a sum of money in the personalty, and affirmed by the King to be paid and satisfied in time before the patent, and so a personal consideration executed; and therewith expressly agrees 37 H. 8. Br. Patents 4.

Note, reader, I have seen divers other letters patent [68 a] made upon like consideration, and havin gauch words, *modo habens & possidens*, and no actual surrender was ever made in any of them. *Vide (g) Berwick's case* in the Fifth Part of my Reports, fol. 93, 94. *Vide the case of Alton Woods* in the First Part of my Reports, betwixt which and the case at Bar the difference appears.

[68 b] THE CASE OF THE MARSHALSEA.

Mich. 10 Jacobi 1.

The Court of the Marshalsea has no jurisdiction in *assumpsit*, where neither the plaintiff nor defendant is of the King's Household.

And if in such case judgment has been obtained against the principal, and one of the bail is arrested by process out of the Marshalsea, such bail may maintain an action for false imprisonment against the party who sued, the Marshal who directed the execution of the process, and the officer who executed the same.

What jurisdiction the Court of Marshalsea had at the common law before the Act "Articuli super Chartas," and in what actions, and to what places and persons their jurisdiction extended.

(a) Co. Lit. 338. a. 2 Roll. 496. *Ant.* 52. b. Dall. 74. Perk. sect. 617. 14 H. 8. 15. a. Br. Lease 14. 2 Roll. Rep. 406. 6 Co. 69. b. 37 H. 8. 18. a. b. 194. b. Br. Surrender 14. 35. 2 Co. 17. b. 7 Co. 38. a. Kel. 70. b. 21 H. 7. 5. a. b. Br. Estoppel 210.

(b) 11 Co. 11. a. 8 Co. 56. a. 167. a. 77. a. Kel. 175. a. 198. a. 3 Leon. 243. 2 Sid. 141. 2 Roll. 200. Plo. 32. a. 126. a. 143. b. Hard. 500. Fitz. Grant 29. Br. Exemp. 9. 1 Co. 49. a. 2 R. 3. 4. a. b.

(c) 2 Roll. 200. 6 Co. 6. a. 3 Bul. 6. 2 Inst. 497.

(d) 2 Roll. 199.

(e) 2 Roll. 206.

(f) Hob. 222. Plow. 455. a. 5 Co. 94. a.

(g) 5 Co. 93. b. 1 Co. 43. b. Moor 393. 2 Roll. Rep. 173. Davis 40. Hob. 204. 3 Keb. 414. Style 189. Hard. 499. Lane 11.